PETITION FOR REVIEW OF FEE WAIVER DENIALS AND IMPROPER EXEMPTION CLAIMS

10/17/2025

To: Kevin Barton, District Attorney

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Reference Number(s):

REFERENCE NUMBERS: C008643-081425 | C008691-082325 | C008202-051525 | C008180-051225

REQUEST	DATE SUBMITTED	STATUTORY DEADLINE (15 DAYS)	ACTUAL RESPONSE DATE	FEE QUOTED	WAIVER DENIED
C008180-051225	May 12, 2025	May 27, 2025	July 9, 2025	Not specified	Yes
C008202-051525	May 15, 2025	May 30, 2025	July 9, 2025	Not specified	Yes
C008643-081425	August 14, 2025	August 29, 2025	September 23, 2025	$181.78	yes
C008691-082325	August 23, 2025	September 7, 2025	September 19, 2025	Not specified	yes
C008906-100625	October 7, 2025	October 22, 2025	October 7, 2025	N/A	N/A

Mr. District Attorney Barton,

Per ORS 192.411(1), Petitioner seeks review of Washington County's denial of four fee-waiver requests, related stated exemptions and one request that is still being processed but is . Each denial relies on either collective or individual criteria that Petitioner asserts are impermissible under Oregon Public Record Law, the Attorney General's Public Records Manual and Washington County's Administrative policies, namely: speculative claims that fulfilling the requests will result in harm to the County's public service mission labeled as "opportunity cost," purported and prospective discovery rights, viewpoint/association discrimination, and lack of benefit to the general public due to the County's perception that the requests will "benefit an individual"—none of which appear as they are being enforced in ORS 192.324(5), the Oregon Attorney General's Public Records Manual ("AG Manual") nor Washington County Administrative Policies.

Counties have a mandatory duty to maintain and produce public records under ORS 192.311-192.478. The Legislature has already determined that the duty to administer Oregon's public records law serves the public interest. Counties should not be allowed to recharacterize their ministerial legal obligation as an "administrative burden" to deny equal access to the product of those obligations, being the disclosure of public records. The County's claim that there would be "harm to the County's public service mission" is especially indefensible because the County's public service mission explicitly includes transparency, public accountability, and the provision of services to victims and community members regardless of their associations, viewpoints, or litigation status. Claiming that to follow state disclosure laws undermines the County's mission inverts the statutory purpose of ORS 192 which declares:

> "The interest and concern of citizens in public records recognizes no jurisdictional boundaries and extends to such records wherever they may be found in Oregon."

Washington County Administrative Policies also state that, "it is the policy of the County to ensure that all requests for public records are handled consistent with applicable public records laws."

The pattern of identical reasoning across distinct and independent county agencies under the same basis for justifying the denials constitutes viewpoint discrimination in violation of the First and Fourteenth Amendments to the United States Constitution **when undertaken under color of state law**,[1] but it also shows blanket discriminatory and arbitrary policy rather than the case-by-case analysis required under public records law and an even more specific inquiry under the county's administrative policy.

The denials, as stated by the county in Washington County's Administrative Policies, directly contravene Oregon's public policy favoring government transparency. Separate county agencies acknowledge that there is evidence within their respective possessions that justifies denying a fee waiver based on the Petitioner's associations. Claiming this as the basis for denial of a fee waiver is textbook viewpoint discrimination and raises questions about whether personal information was shared between agencies **without statutory authorization or legitimate governmental purpose**, potentially implicating ORS 192.355(11) and the restrictions on sharing information about crime victims under ORS 192.364.

In fact, public bodies in Oregon cannot freely share or hold personal information unless there is a legitimate need related to their governmental function or in connection with a criminal investigation. Public bodies must restrict the sharing of personal data to those with a legitimate "need to know" related to their official duties or investigations. Unauthorized retention or sharing beyond this is prohibited under privacy provisions and public records law principles.

I. GOVERNING LAW

ORS 192.324(5) authorizes waiver or reduction when disclosure "primarily benefits the general public." The inquiry turns on transparency and accountability, not agency approval of a requester's motive. A denial may not rest on extraneous considerations such as the identity or motive of the requester, administrative inconvenience, or speculative impacts on agency resources. The Attorney General's Public Records and Meetings Manual (2024 ed.), § I.E.3, instructs that the waiver analysis "must be guided by the nature of the records and their relationship to the public interest—not the status or perceived purpose of the requester."

Administrative inconvenience, litigation posture, and perceived viewpoint are not lawful factors. The County bears the burden of proving reasonableness. ORS 192.311 – .478. In fact, public records law grants public bodies the discretion to furnish copies without charge or at a substantially reduced fee if a request is for records that primarily concern the requester. Although the records are not specifically for the requester in the instant case, the requester is the listed victim and is entitled to such records under the separate victim rights statutes as well as public records law.

As the crime victim, Petitioner's statutory rights under ORS 137.370 and Article I, Section 42 of the Oregon Constitution include the right to information regarding the offender's custody status and supervision. The denial of fee waivers for records the victim is statutorily entitled to access may constitute a separate violation of constitutionally protected victim rights.

II. FACTUAL BACKGROUND

1. (C008180-051225): SWORN AND UNSWORN OFFICER STATEMENTS

Requested May 12, 2025: All sworn and unsworn statements, affidavits, and warrant materials by supervising officers relating to Barry Washington.

County Action: Denied waiver on grounds implying such records might "assist a convicted person." The County did not cite any statutory exemption or address the court order authorizing victims' access.

2. (C008202-051525): COMMUNITY CORRECTIONS COMMUNICATIONS

Requested May 15, 2025: Emails, memoranda, and messages between supervisory staff concerning Barry Washington's supervision and transfer.

County Action: On July 9, 2025, the County Administrator denied the waiver, asserting release would "benefit only an individual" and "damage the public interest by diverting resources." Petitioner is, however, the listed crime victim,

not the alleged beneficiary; any incidental benefit to another person is legally irrelevant under ORS 192.324(5).

3. (C008643-081425): CHRONOS SUPERVISION RECORDS

Requested August 14, 2025: Electronic supervision logs for Barry Washington (21CR25804).

County Action: Acknowledged records non-exempt; quoted $181.78 for redaction; denied waiver citing (1) opportunity cost, (2) litigation discovery rights, and (3) assisting a convicted person.

Context: A standing court order in the criminal judgment compels the defendant to waive confidentiality for victim communication, eliminating any legitimate redaction basis.

4. (C008691-082325): LAYOFF AND BUDGET RECORDS

Requested August 23, 2025: HR and budget records for Community Corrections 2024-25 layoffs.

County Action: Denied entirely under ORS 192.355(2)–(3) without itemization; repeated the same three waiver-denial bases as above; ignored the explicit segregation request. The county fails to establish that the exemption of privacy applies to the names of employees, which is not submitted to the public body in confidence and is required by law to be submitted for employment purposes.

5. (C008906-100625): EVIDENCE OF REQUESTOR ASSOCIATIONS

Requested October 6, 2025: The specific “evidence the County has in its possession suggesting the Requester is interested in using the requested records to provide legal assistance to the convicted perpetrator of the crimes she is the victim of,” as referenced in your letter dated September 19, 2025.

III. ERRORS IN APPLICATION OF LAW

1. "Opportunity Cost" (C008643-081425/C008691-082325) – Extra-Statutory and Unsupported

Washington County Administrative policies do not allow for the denial of a fee waiver because of administrative burden. In fact, the only instance of administrative burden directs the agency to fulfill the request, regardless of such a burden. Under Administrative Policy 203-A 3.3, the County's policy is specifically stated as:

> "Declaring a lack of resources needed to proceed. There may be times when the County does not have staff available to respond at the moment of the request, a high volume of requests may come in simultaneously and/or the request may impede the County's ability to provide other important services to the community. In any of these three cases, the County still must respond to the request as soon as practicable and without unreasonable delay."

Additionally, ORS 192.324(5) contains no "burden" exception. Routine administrative work is contemplated within ordinary fees; it cannot justify categorical denial. The County cannot cite ordinary processing work—the kind already contemplated and recoverable through the fee structure—as an extraordinary "administrative burden" justifying waiver denial. If the work is routine enough to have established fees, it is not burdensome enough to deny waivers. If the burden is truly extraordinary, the County must demonstrate what makes it exceed normal processing rather than merely pointing to its statutory duty to respond. The County offered no factual showing of extraordinary disruption. Both the CHRONOS and HR records exist in electronic form, and the CHRONOS records have been previously acknowledged as producible.

2. "Discovery Rights" (C008643-081425/C008691-082325) – Discriminatory and Irrelevant

Public-records rights attach to "any person," independent of litigation. Denying fee waivers to perceived prospective litigants violates OR. Const. Art. I § 20 (equal protection) and penalizes First Amendment petition activity as well as the Seventh Amendment right to jury trial. No case or authority supports a "litigant exclusion." ORS 192.314(1) expressly disclaims such differentiation.

3. "Assisting a Convicted Person" (All Requests) – Viewpoint Discrimination

Conditioning access on the County's approval/disapproval of perceived associations is viewpoint-based discrimination subject to strict scrutiny. Justice Kennedy of the US Supreme Court expressed that "To prohibit all sides from criticizing their opponents makes a law more viewpoint-based, not less so."

Public-records statutes extend equally to every citizen, irrespective of motive. The denial here punishes the County's perceived disfavored speech and advocacy. As the listed victim in the referenced case, the county cannot deny equal access to fee waivers because of the County's perceived motivations and its approval/disapproval of such motivations. The County has further been requested to provide the evidence it claimed is in the County's possession, which motivated this basis for denial.

4. "Benefits Only an Individual" – Legally and Factually Erroneous

The third denial adds a new justification: that the waiver would serve "only an individual" and divert resources. This misstates the statutory test. The question is whether release primarily benefits the public—not whether any specific individual may also be perceived to expect some benefit. The county fails to establish exactly how layoff records could possibly assist the perpetrator of a crime related to the requester—the records and the identity of the requester's perpetrator has not been sufficiently connected.

Where the requester is the crime victim seeking oversight of offender supervision and the compliant workings of community corrections as is a great matter of public interest—a matter implicating public safety, agency accountability, and compliance with court-ordered victim communication—the public benefit is manifest. But as it pertains to the HR department of Washington County, as is the case related to layoff records, the Requester is as entitled to know and disseminate how the public conducts its business as any other requester.

The County's speculation about "damage to public service" is also unsupported and contrary to the AG Manual's total-circumstances analysis and Oregon public records law that establishes that transparency is the goal of public records. Nothing in the request or response from the County demonstrates undue diversion of resources or harm to public operations. Again, diverting resources, according to Washington County Administrative Policies still requires the agency to fulfill the request without undue delay.

IV. LEGAL STANDARDS GOVERNING THIS APPEAL

A. Statutory Framework

ORS 192.324(5) provides that public bodies "may provide copies of public records without charge or at a substantially reduced fee if the public body determines that the waiver or reduction of fees is in the public interest because making the record available primarily benefits the general public."

B. Attorney General's Public Records Manual Standards

The Oregon Attorney General's Public Records Manual (which provides authoritative guidance on fee waiver determinations) establishes that "a public body's decision, on a case-by-case basis, must be reasonable under the totality of the circumstances."

The Manual directs public bodies to consider:

1. The character of the public interest in the particular disclosure
2. The extent to which the fee impedes that public interest
3. The extent to which a waiver would burden the public body

Critical Point: The Manual emphasizes "case-by-case" analysis and consideration of the "totality of circumstances," establishing that a blanket application of unauthorized criteria to multiple unrelated requests violates this standard. What's more, Washington County Administrative Policies establish an exceedingly specific list of inquiries that are to be considered in connection with determining fee waivers (see below).

C. Burden on Public Body

The public body bears the burden to justify its fee waiver denial as reasonable related to the burden it poses on the public body. Where the requester is requesting easily obtainable, digital records that does not overly burden the agency and has clearly established public interest and non-commercial purpose with intent to disseminate, the public body must articulate specific, substantial reasons why the totality of circumstances nonetheless justifies denial of such a fee waiver.

Washington County Administrator has been directed to consider the following in considering whether to waive a fee:

1. Were the requested records created through uses of certain constitutionally dedicated funds, such as fuel taxes or motor vehicle fees?** (If yes, no waiver is allowed under Oregon law.)
   Answer: No.

2. Would the cost of determining the fee exceed the cost of providing the record? (If yes, fees should be waived, as a readily available record, as defined in Administrative Policy 203.)

   Answer: Yes, if the appropriate fees were assessed.

3. Would release of the requested records "primarily benefit the general public"? Determining the benefit to the public means that "furnishing of the record has utility—indeed, its greatest utility—to the community or society as a whole."

Answer: Yes. The requested records—chronologies, warrants, communications, and layoff notices—primarily benefit the general public by promoting transparency and accountability in government operations. Access to these records informs the public about how law enforcement and government agencies handle investigations, enforce laws, and manage workforce changes, which directly affects community safety and government effectiveness. This supports public oversight and informed civic participation, fulfilling the public interest standard under Oregon's Public Records Law (ORS 192.311 and 192.324) and the Attorney General's Public Records Manual, which emphasizes disclosure that advances public welfare and knowledge over private interests.

4. Other considerations include:

a. How narrowly tailored is the request to a matter of public interest?

Sworn and unsworn statements accompanying warrant requests are highly specific. Layoff records are specifically requested and are unambiguous records confined to a short time period. Chronos records in their entirety are public record, and the court has removed confidentiality for the listed victim in the case; these records should be extremely easy to ascertain. Emails, texts or other communications related to the supervision of Barry Washington are also specific requests that should be maintained in readily accessible formats, as agencies are directed to file public record information appropriately for the purpose of researching and compiling.

b. What is the time and expense needed to fulfill the request?

Although the County did not establish a time frame for all records, it claims that the two hours of staff time needed for redacting information that the court has specifically granted disclosure for is somehow overly burdensome, and this is not reconcilable. Not only due to the waiver of confidentiality, but also because the requested records are maintained in the normal course of business for both departments, and especially because Chronos records, warrants, as well as communication related to the supervision of Barry Washington should not require redaction, the expense to fulfill the request should be extremely minimal in producing digital disclosure. As a political subdivision of the State of Oregon, Washington County has been directed in Or. Rev. Stat. § 192.040-.050 to properly index and file records so as to facilitate access and retrieval.

c. What is the volume of the records requested?

The records requested are not especially voluminous and do not require a great deal of compilation. They are records of small volume and should not overly burden the county's resources.

d. Is there a need to segregate exempt from nonexempt materials?

If Layoff records contain any personal information, such as social security numbers, birthdays, or home addresses and phone numbers, this information should undergo only customary and routine redaction that is not overly taxing or complex. The requested records specifically acknowledge that if any redaction is needed for this information, the remaining segregated records should still be provided. But, even in the case of needed redaction for these records, it should be customary redaction, not requiring technical or specific skillsets to carry out.

e. Is the fee avoidable?

The County is likely to expend less in the production of said records than it will gain in the production of the records under a reasonable fee assessment. The current assessment is excessive and not conducive to the county's fee schedule. But if reasonable fees were to have been assessed or proposed, the time the county would expend in disclosure should not exceed the cost of the revenue it would garner.

f. What ability does the requester have to pay the fee?

The requester does not have the financial means to pay the fee whatsoever. The county has already established that she is indigent, and so the fees create a very real barrier to access, which violates the First, Seventh, and Fourteenth Amendments of the US Constitution.

g. Is there an aggregate effect of numerous public records requests from the same requester

Although there may be more than one request from the same requester, each request is minimal in scope, and the requests span over a number of months during which that same period the county has declined to disclose any of the Requester's sought-after records. Some of the requested records should have been disclosed by other means, but were not (warrant upon arrest), and requesting them via public records request is the only feasible alternative—but the county should not be able to charge for this type of document when state and federal law require its disclosure upon execution.

h. Does the requester have the ability to disseminate the records?

The Requester absolutely can disseminate the records, and will, both through well-known media outlets, social media, and through regulatory bodies as well. Petitioner has engaged investigative journalists at

The Oregonian and OPB, regarding government accountability issues, maintain a public presence where government records are regularly analyzed and shared, and intend to provide these records to advocacy organizations focused on criminal justice reform and victim rights.

i. Is the requester expressing the intention to share the records with the general public?

The requester is committed to sharing the disclosed records with the general public, as it is in the public's interest to know whether their government is spending their tax dollars consistent with what is publicized in forward-facing communication. Washington County should not be able to claim that it is protecting the taxpayers' dollars from misuse if, in fact, the disclosure of the records would establish agency misconduct and misuse of funds.

j. Is the requester a representative of the media, a member of a community or neighborhood organization, a member of a non-profit organization, or a person associated with schools or colleges?

Requestor is an advocate for justice and seeks the transparency that Oregon public records law promises. The requester has associations with OPB, The Oregonian, and other well-known publications, as well as other investigative journalists who have a right to disclosure of this information.

V. STANDING AND INJURY

Petitioner has suffered a concrete injury through the denial of statutorily guaranteed access to public records. The assessed fees ($181.78 and others) constitute an unconstitutional barrier to access given Petitioner's established indigency. The County's viewpoint-based denials have chilled Petitioner's First Amendment rights to gather and disseminate information regarding government operations. These injuries are redressable through the relief requested herein.

VI. REQUESTED RELIEF

Petitioner respectfully requests that the District Attorney:

1. Order Washington County to grant fee waivers as required under ORS 192.324(5), finding:

- That there is no exemption related to layoff records

- That under the totality of circumstances the disclosure does, in fact, primarily benefit the public

- That the assessed fees substantially impede the public interest

- That the fee waivers would not substantially burden the County

- That there is no adequate denial based on administrative burden (only potential extensions of deadlines)

- That the Requestor has proven a sufficient non-commercial purpose with the ability to disseminate

2. Order the production and disclosure of all requested records that are easily obtainable in their native digital format within seven (7) days

3. Find that the Requester's victim rights afford additional statutory basis to receive such records and that such an entitlement is supported by a valid court order

4. Ensure that the county does not assess any unreasonable fees for unnecessary redaction or staff time

5. Order the county to segregate exempt and non-exempt layoff records or ensure the county is only permitted to charge up to the cost of disclosing the requested records

6. Require that any exemptions be specifically itemized with an explanation of why an exemption is justified

In the alternative, should the District Attorney determine that the fee waiver denials were reasonable,

Petitioner requests written findings specifying:

- (1) which of the County's stated reasons (opportunity cost, discovery rights, assisting a convicted person, or benefit only to an individual) constitutes a permissible factor under ORS 192.324(5);

- (2) the factual basis for the County's knowledge of Petitioner's associations and intentions for said records and the disclosure of the “evidence” referenced by Aaron Mendez in the public records request; and

-(3) whether the District Attorney has consulted with County Counsel regarding the constitutional implications of the denials addressed herein.

VII. CONCLUSION

Washington County's fee waiver denials are unreasonable under the totality of circumstances and do not follow the Attorney General's directives, Oregon public records law, and County policies related to the fulfillment of records requests. The County takes part in viewpoint discrimination[1], victim's rights violations, raises questions about possible misuse of victim information or unlawful sharing of information between agencies, fails to conduct appropriate analysis of fee waivers, has refused to negotiate fees and narrower records, and asserted an untenable and legally indefensible basis for withholding records, which could potentially constitute a violation of ORS 162.315.

Petitioner reserves all rights and remedies available under state and federal law, including but not limited to those provided under 42 U.S.C. § 1983 and the Oregon Tort Claims Act.

Your expedient and impartial review of this request is greatly appreciated.

Respectfully submitted,

/s/ AshLe' Penn

AshLe' Penn
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CERTIFICATE OF SERVICE

A copy of this Petition has been served upon Cortney Duke Driessen, Legal Counsel for Washington County, via email on October 17, 2025.

[1] [1] Petitioner notes that under Oregon law, governmental entities may be liable for constitutional violations committed by employees acting within the scope of their employment. See ORS 30.265(1). This petition serves as notice of claims and potential claims arising from the matters described herein.